

Comment

Section 160 provides for punishment for a person opening or breaking a level crossing gate.

161. Negligently crossing unmanned level crossing : If any person driving or leading a vehicle is negligent in crossing an unmanned level crossing, he shall be punishable with imprisonment which may extend to one year.

Explanation : For the purposes of this section, “ negligence” in relation to any person driving or leading a vehicle in crossing an unmanned level crossing means the crossing of such level crossing by such person-

- (a) without stopping or caring to stop the vehicle near such level crossing to observe whether any approaching rolling stock is in sight, or
- (b) even while an approaching rolling stock is in sight.

Comment

Section 161 lays down the punishment for any person negligently driving or leading a vehicle across in unmanned level crossing.

Loss due to negligence burden to disapprove negligence lies on bailee.- It is well settled that in cases governed by Secs. 152 and 152 Contract Act the loss or damages of goods entrusted to a bailee is prima facie evidence of negligence and therefore the burden to disapprove negligence lies on the bailee. The bailee has to prove that he exercised due care and was not negligent.

162. Entering carriage or other place reserved for females.- If a male person knowing or having reason to believe that a carriage, compartment berth or seat in a train or room or other place is reserved by a railway administration for the exclusive use of females, without lawful excuse,-

- (a) enters such carriage, compartment, room or other place,, or having entered such carriage, compartment, room or place, remains therein ; or
- (b) occupies any such berth or seat having been required by any railway servant to vacate it,

he shall in addition to being liable to forfeiture of his pass or ticket, be punishable with fine which may extend to five hundred rupees and may also removed by any railway servant.

Comment